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IN THE DISTRICT COURT OF APPEAL

FIRST DISTRICT, STATE OF FLORIDA

MARC M. MOSZKOWSKI,

Appellant,

CASE NO.: 1D2025-2912

vs.

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.,

Appellees.

REPLY BRIEF OF APPELLANT

On Appeal from a Final Judgment entered in the Circuit Court of the First Judicial Circuit, in and for Escambia County, Florida, Hon. Jan Shackelford, Senior Judge.

Submitted by:

Marc M. Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Telephone: +1 (251) 300 4820 (U.S.)

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INTRODUCTION

Appellees' Answer urges affirmance based on deference to the trial court and generalized references to testimony and exhibits. That framing does not address the central question presented: whether the written Final Judgment itself sets forth the factual findings and legal predicates necessary to sustain the liability imposed.

The order announces liability for civil theft and conversion, imposes substantial monetary relief, and references evidence in general terms. It does not identify the ownership interest underlying the alleged taking, specify how the elements of the causes of action were satisfied, or disclose the reasoning connecting the cited evidence to the conclusions reached.

Appellate review requires more than deference to conclusions. Where a judgment does not reveal the essential findings supporting liability, affirmance would require supplying reasoning not expressed in the order itself. Because the Final Judgment does not articulate those necessary predicates, reversal is required.

I. THE FINAL JUDGMENT DOES NOT ARTICULATE THE PREDICATES NECESSARY TO PERMIT APPELLATE REVIEW

The Final Judgment imposes liability across multiple counts yet does not articulate the factual findings necessary to establish the predicates for that liability. Rather than revealing the reasoning that connects the evidence to the legal conclusions announced, the order states outcomes while leaving the basis for those outcomes undisclosed. Without findings identifying ownership, entitlement, and the legal theory supporting recovery, meaningful appellate review is not possible.

This appeal does not ask the Court to reweigh testimony or resolve factual conflicts. The dispositive defect appears on the face of the written order. Although the judgment references testimony and exhibits, it does not describe the facts found, explain how those facts satisfy the elements of the causes of action, or identify when the rights underlying Plaintiffs' claims arose.

Appellees repeatedly assert that Appellant "did not attend" trial as though his absence were voluntary. The record reflects that in-person attendance was financially impossible for Appellant, who resides 5,000 miles from the forum and could not fund international travel and extended lodging for the pretrial conference and trial proceedings. Appellant submitted sworn medical documentation demonstrating physical inability to undertake such travel. The court denied remote appearance based largely on case-management concerns—administrative burden and the age of the case—rather than articulating findings addressing Appellant's sworn evidence of inability to appear. The trial therefore proceeded in Appellant's physical absence.

Appellees rely heavily on the presumption of correctness, yet that presumption attaches only to findings actually made. An appellate court may imply subsidiary findings supported by the record, but it may not presume the existence of essential statutory elements necessary to sustain civil theft liability and treble damages. Those predicates must appear in the written judgment itself.

There is "a serious risk of an erroneous deprivation" when financial penalties depend upon factual findings the affected party had no opportunity to challenge. "Procedural due process requires both fair notice and a real opportunity to be heard 'at a meaningful time and in a meaningful manner.'" *Massey v. Charlotte County*, 842 So. 2d 142 (Fla. 2d

DCA 2003). When liability of this magnitude is imposed, the written order must reveal the reasoning that supports it. It does not.

II. THE CIVIL THEFT FINDING FAILS TO IDENTIFY ANY PROPERTY INTEREST BELONGING TO DEEPGULF

The Final Judgment holds Appellant liable for civil theft based on payments made "from Toke," yet it contains no finding establishing that DeepGulf possessed a property interest in those funds at the time of payment. Without such a predicate, the essential element of property belonging to another does not appear in the written order.

Civil theft requires proof that the defendant exercised dominion over specifically identifiable property owned by the claimant. The judgment does not identify when any such ownership interest arose, the legal theory by which Plaintiffs became entitled to payments made by a separate entity, or how the cited evidence satisfies that element.

Instead, the order concludes that civil theft was "proven by clear and convincing evidence," citing Plaintiffs' Exhibits 13 and 15. It does not describe what facts were found from those exhibits or explain how those facts establish DeepGulf's ownership of the funds at the time of the alleged taking. Without an articulated finding of such ownership, the statutory predicate for civil theft does not appear in the judgment itself.

The same absence of an identified property interest necessarily undermines the conversion finding. The Final Judgment declares the distributed funds to be “DeepGulf’s property,” yet it does not identify when or how DeepGulf acquired title or an immediate right to possession at the time of the alleged distributions. The payments at issue preceded DeepGulf’s acquisition of ownership interests in Toke, and the order articulates no theory of retroactive entitlement, agency, assignment, trust, or contractual right establishing contemporaneous ownership.

The record reflects that the challenged distributions occurred across multiple ownership periods: before DeepGulf acquired a 33% interest, it nonetheless received approximately forty-four percent of Toke’s overall distributions; after acquiring that 33% interest, it received more than seventy percent of distributions; and no revenue was generated after DeepGulf acquired the remaining 67% and became sole owner. The Final Judgment does not identify what ownership interest governed entitlement during these distinct periods, nor does it articulate any finding that the challenged payments exceeded DeepGulf's contemporaneous ownership interest.

The Final Judgment does not articulate any theory by which DeepGulf's later acquisition of Toke retroactively vested title in distributions made years earlier. Nor does it identify any finding that the acquisition price reflected the existence of a recoverable corporate asset or assigned cause of action. Absent articulated findings establishing that the challenged funds remained corporate property at the time of acquisition and were thereby transferred to DeepGulf, the essential contemporaneous property element of civil theft and conversion is not established on the face of the judgment.

The judgment thus moves from present ownership to past entitlement without identifying any legal mechanism bridging that temporal gap. The judgment likewise does not address the record evidence that DeepGulf received substantial distributions from Toke during the same period in which the challenged payments occurred. The order contains no finding that the amounts deemed converted exceeded any ownership interest proven at the time of distribution, nor does it articulate how sums allocated to independent third-party shareholders became DeepGulf's property. Without findings addressing those issues, the essential element of property belonging to another is not established on the face of the judgment. While subsidiary factual inferences may be implied, essential statutory elements—particularly the existence of a contemporaneous property interest required for civil theft and conversion—may not be supplied by implication where the written judgment does not articulate them.

At most, the judgment reflects a dispute concerning allocation or accounting among business participants. Such disputes do not, without articulated findings of contemporaneous ownership and right to immediate possession, satisfy the statutory requirement that the defendant exercised dominion over property belonging to another at the time of the alleged taking.

III. THE FINAL JUDGMENT DOES NOT DISCLOSE THE ANALYTICAL PATH NECESSARY FOR AFFIRMANCE

No transcript exists because no court reporter was present at the bench trial. Appellant therefore challenges the legal sufficiency of the written Final Judgment itself—whether its articulated findings, on their face, establish the required elements of the claims—not the credibility or weight of unrecorded testimony. A transcript cannot supply findings that the written judgment itself does not articulate.

The defect identified in the sections above is not confined to a single count. Across multiple determinations—including civil theft and conversion—the Final Judgment announces liability while leaving the factual and legal predicates necessary to support that liability unstated. This omission is particularly consequential where the order relies on present ownership while the alleged distributions occurred years earlier, yet identifies no articulated legal basis for treating those prior funds as DeepGulf's property at the time of payment.

Although the order references testimony and exhibits, it does not identify the specific facts found, the legal theory applied, or the reasoning connecting those facts to the elements of the claims adjudicated. Without that articulation, appellate review would require reconstruction rather than review.

"The written order contains no findings, explanation… This was error and requires reversal." *Walters v. State*, 994 So. 2d 1230, 1233 (Fla. 2d DCA 2008). Here, although the judgment references exhibits, it does not articulate the factual findings or legal predicates necessary to support liability. Where the analytical path does not appear in the order itself, affirmance would require supplying reasoning the trial court did not articulate.

Because the Final Judgment does not reveal the reasoning necessary to support affirmance, reversal is required so that the requisite findings may be made.

IV. THE JUDGMENT IMPOSES EXTRAORDINARY MONETARY LIABILITY WITHOUT ARTICULATING THE FINDINGS NECESSARY TO SUPPORT IT

The Final Judgment imposes substantial monetary liability—including treble damages, prejudgment interest, and execution—yet does so without articulating the findings necessary to justify such extraordinary relief.

With respect to civil theft, the order announces liability and specifies the amounts awarded but does not disclose the factual findings or legal reasoning supporting the imposition of treble damages. The judgment moves directly from a generalized reference to liability to the multiplication of damages, without identifying the predicates required to sustain that punitive statutory remedy.

“The respondent is entitled to … protection from the effects of a final judgment… that lacks any evidentiary support." *Achurra v. Achurra*, 80 So. 3d 1080, 1083-84 (Fla. 1st DCA 2012). Appellate courts may not infer essential predicates or reconstruct reasoning absent from the written order—particularly where enhanced statutory damages are imposed.

When severe financial consequences flow from a judgment, the requirement that the written order reveal its analytical basis is at its apex. Because the Final Judgment proceeds from the announcement of liability to the imposition of extraordinary monetary sanctions without articulating the findings necessary to support that result, meaningful appellate review is impaired. Reversal is therefore required so that the requisite findings may be made.

V. THE CUMULATIVE EFFECT OF THE JUDGMENT'S ANALYTICAL OMISSIONS REQUIRES REVERSAL

The errors described in Sections I through IV are not isolated or technical; they reflect a structural deficiency in the Final Judgment's articulation of the factual and legal predicates necessary to sustain liability. Across multiple counts, the order announces conclusions while omitting essential findings, including identification of the ownership interest underlying the alleged taking at the relevant time, and articulation of the factual basis for civil theft.

Instead, the judgment proceeds directly from generalized references to testimony and exhibits to the imposition of substantial monetary liability.

Where a written order does not reveal the analytical path by which liability was determined, appellate review cannot be meaningfully performed. Affirmance would require supplying essential elements or statutory predicates not expressed in the order itself. Florida law does not permit appellate courts to reconstruct such predicates in order to sustain a judgment.

Because the Final Judgment fails to articulate the findings necessary to support the conclusions reached, reversal is required so that the trial court may enter an order that discloses the factual and legal basis for its determinations.

CONCLUSION

For the foregoing reasons, Appellant respectfully requests that this Court reverse the Final Judgment and remand for further proceedings consistent with this Court's opinion, and grant such other relief as this Court deems just and proper.

Respectfully submitted this 3rd day of March, 2026.

Marc Moszkowski, Pro Se
Le Verdos
83300 Châteaudouble, France
Telephone: +1 (251) 300 4820 (U.S.)
Email: m.moszkowski@deepgulf.net

M. Moszkowski

CERTIFICATE OF SERVICE

I hereby certify that, on this 3rd day of March 2026, a true and correct copy of the foregoing was served on all counsel of record via the Florida Courts E-Filing Portal.

M. Moszkowski

CERTIFICATE OF COMPLIANCE

Pursuant to Florida Rule of Appellate Procedure 9.210(a)(2), I certify that this Reply Brief of Appellant:

1. is written in 14-point Arial font;
2. is double-spaced; and
3. contains **1,926 words**, excluding the parts exempted by Rule 9.210(a)(2)(E).